

SENATE BILL 1703

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 37, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-102(b)(13), is amended by
adding the following as a new subdivision:

(K) Whose parent or guardian is unable to provide for the care and control of the
child due to circumstances beyond the parent's or guardian's control;

SECTION 2. Tennessee Code Annotated, Section 37-1-129, is amended by designating
subdivision (b)(1) as subdivision (b)(1)(A) and adding the following new subdivision (b)(1)(B):

(B) In order for a child to be found to be a dependent and neglected child under
§ 37-1-102(b)(13)(K), the court must hold an adjudicatory hearing and find that the
parent or guardian is unable to provide for the care and control of the child and that the
inability to provide such care and control is due to circumstances that are beyond the
parent's or guardian's control.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.